

NON-DISCLOSURE AGREEMENT

Between "Innovate Labs Inc." (Disclosing Party) and "ConsultPro Partners LLC" (Receiving Party)

Effective Date: June 10, 2025 | Agreement No. NDA-2025-0112

BACKGROUND

Innovate Labs Inc. is engaged in the research and development of proprietary artificial intelligence systems, machine learning models, and associated software platforms for enterprise applications. ConsultPro Partners LLC has been engaged to provide strategic advisory services related to Innovate Labs' planned Series B financing and go-to-market strategy.

In connection with this engagement, Innovate Labs will necessarily disclose to ConsultPro certain proprietary, sensitive, and confidential information relating to its technology, business plans, financials, and customer relationships. The parties desire to set forth the terms under which such information may be used.

ARTICLE 1 — DEFINITIONS

1.1 "Confidential Information"

means all non-public information and materials disclosed by Innovate Labs to ConsultPro in connection with the Engagement, whether oral, written, or electronic, and whether or not marked as confidential, including: source code, algorithms, model architectures, training data specifications, benchmark results, product roadmaps, financial projections, investor materials, customer lists, and pricing strategies.

1.2 "Engagement"

means the strategic advisory services to be provided by ConsultPro pursuant to the Master Services Agreement dated June 1, 2025, including all work related to the Series B financing preparation and go-to-market strategy development.

1.3 "Representatives"

means a party's directors, officers, employees, contractors, legal counsel, accountants, and financial advisors who have a need to know the Confidential Information and who are bound by obligations no less restrictive than herein.

1.4 "Trade Secrets"

means Confidential Information that constitutes a trade secret under applicable law, including proprietary AI model weights, training methodologies, proprietary datasets, and algorithmic innovations that derive independent economic value from secrecy.

ARTICLE 2 — CONFIDENTIALITY OBLIGATIONS

2.1 Non-Disclosure. ConsultPro agrees to hold all Confidential Information in strict confidence using at least the same degree of care it uses for its own most sensitive confidential information, but no less than a reasonable standard of care. ConsultPro shall not disclose, publish, distribute, copy, or otherwise communicate Confidential Information to any third party without Innovate Labs' prior written consent.

2.2 Permitted Use. ConsultPro may use Confidential Information solely for the purpose of performing its obligations under the Engagement. Any use for competitive intelligence, benchmarking against other clients, or developing competing products or services is strictly prohibited.

2.3 Access Limitation. ConsultPro shall limit access to Confidential Information to those Representatives with a strict need-to-know. ConsultPro shall maintain a written record of all Representatives who have accessed Confidential Information and shall provide such record to Innovate Labs upon request.

2.4 Security Measures. ConsultPro shall implement and maintain reasonable technical and organizational measures to protect Confidential Information, including: encrypted storage, access controls, secure transmission, and physical security for all tangible materials containing Confidential Information.

2.5 Breach Notification. ConsultPro shall notify Innovate Labs within 24 hours upon discovering any unauthorized access, use, or disclosure of Confidential Information. ConsultPro shall cooperate fully in investigating and mitigating any such breach.

ARTICLE 3 — EXCLUSIONS

Confidentiality obligations shall not apply to information ConsultPro can demonstrate by contemporaneous written records:

- (a) is or becomes publicly available through no act or omission of ConsultPro;
- (b) was rightfully in ConsultPro's possession prior to disclosure, free of any obligation of confidence;
- (c) is independently developed by ConsultPro without use of the Confidential Information;
- (d) is rightfully received from a third party without restriction on disclosure; or
- (e) is required to be disclosed by law or court order, subject to Article 3.2 below.

3.2 Required Disclosures. If ConsultPro is legally required to disclose Confidential Information, ConsultPro shall: (a) give Innovate Labs prompt written notice; (b) cooperate in seeking a protective order; and (c) disclose only the minimum amount legally required.

ARTICLE 4 — INTELLECTUAL PROPERTY

4.1 No License. Nothing in this Agreement grants ConsultPro any license, right, or interest in any Confidential Information or intellectual property of Innovate Labs. All Confidential Information remains the exclusive property of Innovate Labs.

4.2 Feedback. Any feedback, suggestions, or improvements ConsultPro provides relating to Innovate Labs' products, technology, or business shall be deemed the exclusive property of Innovate Labs. ConsultPro hereby assigns all rights in such feedback to Innovate Labs without additional compensation.

ARTICLE 5 — TERM AND RETURN OF INFORMATION

5.1 Term. This Agreement is effective as of June 10, 2025. Confidentiality obligations remain in effect for the longer of: (a) 5 years from the date of disclosure of each item; or (b) the duration of the Engagement plus 3 years. Obligations with respect to Trade Secrets continue indefinitely.

5.2 Return and Destruction. Within 10 business days of the Engagement's termination or Innovate Labs' written request, ConsultPro shall return or certify secure destruction of all Confidential Information, including all copies, extracts, and derivative works.

ARTICLE 6 — REMEDIES

6.1 Injunctive Relief. ConsultPro acknowledges that breach would cause immediate, irreparable harm to Innovate Labs for which monetary damages would be inadequate. Innovate Labs shall be entitled to seek equitable relief, including injunction and specific performance, without posting any bond.

6.2 Cumulative Remedies. The rights and remedies of Innovate Labs are cumulative and not exclusive of any other rights at law or in equity.

ARTICLE 7 — GENERAL PROVISIONS

7.1 Governing Law. This Agreement shall be governed by the laws of the State of California. The parties consent to the exclusive jurisdiction of the state and federal courts located in San Francisco County, California.

7.2 Assignment. ConsultPro may not assign this Agreement without Innovate Labs' prior written consent. Innovate Labs may freely assign this Agreement in connection with a merger, acquisition, or sale of substantially all of its assets.

7.3 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements, understandings, and representations relating to the subject matter hereof.

7.4 Counterparts. This Agreement may be executed in counterparts. Electronic signatures shall be deemed valid and binding to the same extent as originals.

EXHIBIT A — CATEGORIES OF CONFIDENTIAL INFORMATION

Category	Examples
Technology & IP	AI model architectures, weights, training datasets, benchmark results, source code, APIs, and all technical d
Business Strategy	Product roadmaps, go-to-market plans, competitive analyses, pricing strategies, and partnership pipelines.
Financial Information	Historical financials, projections, cap table, valuation analyses, term sheets, and Series B offering document
Customer Data	Customer lists, contract terms, usage data, pipeline opportunities, and customer-specific configurations.
Personnel	Compensation structures, equity grants, retention plans, organizational charts, and performance data.

ARTICLE 8 — COMPLIANCE AND REGULATORY OBLIGATIONS

8.1 Export Controls. ConsultPro acknowledges that certain Confidential Information may be subject to export controls under applicable laws, including the Export Administration Regulations (EAR) and the International Traffic in Arms Regulations (ITAR). ConsultPro shall comply with all applicable export control laws and shall not export, re-export, or transfer any Confidential Information to any country, entity, or individual restricted by such laws without obtaining all required governmental authorizations.

8.2 Data Privacy Compliance. To the extent any Confidential Information includes personal data (as defined under applicable privacy laws), ConsultPro shall process such personal data only in accordance with Innovate Labs' instructions and applicable data protection laws, including the California Consumer Privacy Act (CCPA), the EU General Data Protection Regulation (GDPR), and any other applicable privacy regulations. ConsultPro shall not use personal data for any purpose other than the Engagement and shall promptly notify Innovate Labs of any data subject rights requests received.

8.3 Anti-Bribery and Corruption. ConsultPro represents and warrants that it has not and shall not engage in any conduct that would constitute a violation of applicable anti-bribery and anti-corruption laws, including the U.S. Foreign Corrupt Practices Act (FCPA) and the UK Bribery Act, in connection with this Agreement. ConsultPro shall maintain adequate procedures to prevent such violations.

ARTICLE 9 — REPRESENTATIONS AND WARRANTIES

9.1 Authority. Each party represents and warrants that: (a) it has the full right, power, and authority to enter into this Agreement and to perform its obligations hereunder; (b) this Agreement has been duly authorized by all necessary corporate action; and (c) this Agreement constitutes a legal, valid, and binding obligation of such party, enforceable against it in accordance with its terms.

9.2 ConsultPro Representations. ConsultPro represents and warrants that: (a) it has implemented and maintains an information security program that meets industry best practices; (b) its Representatives who will access Confidential Information have been duly informed of and are bound by obligations consistent with this Agreement; and (c) the execution of this Agreement does not violate any other agreement to which ConsultPro is a party.

9.3 Innovate Labs Representations. Innovate Labs represents and warrants that it has the right to disclose the Confidential Information to ConsultPro, and that such disclosure does not violate any third-party rights or any applicable law. Innovate Labs makes no representation regarding the accuracy or completeness of the Confidential Information.

ARTICLE 10 — DISPUTE RESOLUTION

10.1 Informal Resolution. The parties shall attempt in good faith to resolve any dispute arising under this Agreement through informal negotiation. Either party may initiate this process by providing written notice to the other party describing the dispute in reasonable detail. The parties shall meet within 15 business days of such notice to attempt resolution.

10.2 Mediation. If the parties are unable to resolve a dispute through informal negotiation within 30 days of the initial notice, either party may request non-binding mediation before a single mediator agreed upon by the parties. The costs of mediation shall be shared equally between the parties. Either party may terminate the mediation at any time.

10.3 Litigation. If mediation fails, disputes shall be resolved in the state or federal courts of San Francisco County, California, and each party hereby submits to personal jurisdiction in such courts. The prevailing party in any litigation shall be entitled to recover its reasonable attorneys' fees and costs from the non-prevailing party.

10.4 Emergency Relief. Notwithstanding the foregoing, either party may seek immediate injunctive or other emergency relief from any court of competent jurisdiction without first engaging in informal negotiation or mediation.

ARTICLE 11 — MISCELLANEOUS

11.1 Notices. All notices under this Agreement shall be in writing and delivered by: (a) personal delivery; (b) overnight courier with tracking; (c) certified mail, return receipt requested; or (d) email with read receipt confirmation. Notices to Innovate Labs shall be sent to its General Counsel at the address on the signature page. Notices to ConsultPro shall be sent to its Managing Partner.

11.2 Severability. If any provision of this Agreement is held invalid or unenforceable by a court of competent jurisdiction, such provision shall be modified to the minimum extent necessary to make it enforceable, and all remaining provisions shall continue in full force and effect.

11.3 No Waiver. No failure or delay by either party in exercising any right, power, or privilege hereunder shall operate as a waiver. No single or partial exercise of any right shall preclude any other or further exercise thereof. All waivers must be in writing to be effective.

11.4 Relationship of Parties. The parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, franchise, or employment relationship. Neither party shall have authority to bind the other.

11.5 Construction. This Agreement was negotiated by the parties and shall not be construed against either party as the drafter. Headings are for reference only and shall not affect interpretation. The words 'include,' 'includes,' and 'including' are not limiting.

EXHIBIT B — APPROVED REPRESENTATIVE ACKNOWLEDGMENT

Each Representative of ConsultPro who will access Confidential Information must execute this acknowledgment prior to receiving access. ConsultPro shall retain executed copies and provide them to Innovate Labs upon request.

Field	Details
Full Name	
Title / Role	
Department	
Date of Access Start	
Specific Categories of CI to be Accessed	
Signature	
Date	

By signing below, the undersigned Representative acknowledges that they have read and understood the Non-Disclosure Agreement dated June 10, 2025, between Innovate Labs Inc. and ConsultPro Partners LLC, and agrees to be individually bound by its terms with respect to all Confidential Information accessed in connection with the Engagement.

EXHIBIT C — DATA SECURITY STANDARDS

ConsultPro shall comply with the following minimum security standards when handling Confidential Information:

Control	Requirement	Verification Method
Encryption at Rest	AES-256 or equivalent for stored CI	Annual audit
Encryption in Transit	TLS 1.2+ for all data transmission	Automated scan
Access Control	Role-based access, least privilege principle	Quarterly review
Authentication	MFA required for all systems holding CI	Monthly check
Audit Logging	All access to CI systems logged and retained 1 year	Log review
Endpoint Security	Managed devices with EDR, disk encryption	Annual audit
Incident Response	Written IR plan, annual tabletop exercise	Documentation
Vendor Management	Third-party vendors assessed before sharing CI	Annual review

SIGNATURE PAGE

INNOVATE LABS INC. (Disclosing Party)

CONSULTPRO PARTNERS LLC (Receiving Party)

Signature: _____

Name: _____

Title: _____

Date: _____

Signature: _____

Name: _____

Title: _____

Date: _____